

Chandra Shekhar v. State of U.P.

Allahabad High Court · Division Bench · 10 February 2015 · Writ-C No. 8152 of 2015 · **Writ dismissed; bill challenge relegated to clause 6.5.**

HEADNOTE

A consumer who challenges the correctness of an electricity bill must apply under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, before the competent authority. The High Court dismissed the writ without examining the bill on merits.

FACTUAL SUMMARY

Chandra Shekhar filed Writ-C No. 8152 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and two others. He sought to impugn the correctness of a bill issued by the Electricity Department. The Division Bench of Arun Tandon and Harsh Kumar, JJ. heard the petition on 10 February 2015. The petitioner was represented by M.A. Mishra and Bipin Kumar; the State by the Chief Standing Counsel, and Mahboob Ahmad appeared for the respondents. The Court did not examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-challenge

HOLDING

Where a consumer seeks to challenge the correctness of a bill issued by the Electricity Department, the proper remedy is an application under clause 6.5 of the Electricity Supply Code, 2005, before the competent authority; a writ petition for that purpose is dismissed. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer who challenges the correctness of an electricity bill must apply under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, before the competent authority. The High Court dismissed the writ without examining the bill on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Not examined on merits; petitioner directed to the clause 6.5 forum. ¶ 1